

Federal Maritime Commission

MAVL Capital, et al.

Complainants

v.

MARINE TRANSPORT LOGISTICS, INC.,
DIMITRY ALPER

Respondents

Docket No. 16-16

**OPPOSITION TO MOTION
SEEKING SANCTIONS**

Complainants' counsel, Mr. Nussbaum, in filing yet another frivolous motion, has violated 46 C.F.R. §502.71. This section imposes a duty to confer, stating that "the parties must attempt to discuss the anticipated motion with each other in good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement."

Mr. Nussbaum "conferred" with me by sending one email and upon receipt of my response with attachments rushed to file this frivolous motion. Since Mr. Nussbaum did not give me a chance to address the contents of his motion before he filed such (as required by the above-cited Regulation), the following is respectfully being offered in opposition to his motion seeking sanctions.

Mr. Nussbaum claims on page 23 of his motion (as to MTL Invoice #24261 addressed to MAVL Inc for the Mercedes) that this invoice as part of these proceedings "have been newly created" before the Commission to insert Car Express as the shipper when there is another

invoice (MTL Invoice #24261 for the Mercedes) that lists Atlantic Cargo Logistics LLC as the shipper.

Mr. Nussbaum is misleading the Court and the Commission by omitting from his 315 pages of exhibits the following.

As the Initial Decision (Docket No. 16-16) pointed out on page 15: “Alla Solovyeva, MTL’s president, stated that a company call[ed] Car Express & Import, Inc., exported the Mercedes to Dubai...” (See Docket Entry #21, Appendix #2, Answer to Interrogatory #3.)

Why did Mr. Nussbaum neglect to bring this to the Commission’s attention? Ms. Solovyeva made this answer to the interrogatory in 2014, so Mr. Nussbaum’s assertion that the invoice was “altered” to include Car Express as the Shipper in 2021 is not well taken as further explained below.

MTL submitted evidence that Mavl/Mr. Ostrovskiy was non-responsive when MTL staff reached out to him requesting status as to payment of storage. In fact, as Ms. Solovyeva points out in her Certification (first item in the enclosed exhibits), Mr. Ostrovskiy, in addition to failing to pay for services as to the Mercedes and the Porsche, Mr. Ostrovskiy abandoned other property, such various vehicles, Bobcat motorcycles and other property in Germany and Finland, forcing MTL to cover storage charges for such.

Ms. Solovyeva explains how Car Express became the USPPI as to the Mercedes:

“With respect to the Mercedes, the reason why Car Express was subsequently listed as the shipper, was because after my company could not locate Mr. Ostrovskiy, Car Express found the customer (Middle East Asia Alfa) who paid for outstanding storage charges and the vehicle was transferred to Car Express as it is a dealer so the vehicle could lawfully be exported out of the United States. Attached to this Certification are MTL’s payment receipts. A USPPI is typically either a dealer or an auction, and since Middle East Asia Alfa was neither a dealer nor an auction, it would not have been proper to list it as the shipper as it would not be USPPI. This is why the invoice for storage charges was transferred from MAVL to Middle East Asia Alfa.

When a lien was asserted, I offered this vehicle to all my customers and dealers, and Car Express's client, Middle East Asia Alfa, paid for the storage. Car Express, as a lawful dealer, found the buyer for the Mercedes and Porsche, and acted as a third party between MTL and the consignee. As far as I am aware, a vehicle may be exported out of the United States if the USPPI is an auto auction, dealership, or the direct purchaser listed on the title, and albeit Car Express's involvement with respect to the Mercedes was limited, I believe that they were the lawful entity to be designated as the USPPI."

Mr. Nussbaum then claims that "there was nothing new produced by MTL in the December 20, 2020 email and nothing which complies with the Presiding Officer's Order of December 10, 2020." Mr. Nussbaum's position is not clear: first he is alleging that MTL fabricated documents to be used in this proceeding, and in the same tone he is accusing MTL of not produce anything new. MTL was searching and produced what it could find relating to the specific issues on remand going back almost 8 years now...

Both in the MAVL federal litigation and in these proceedings before the Commission, evidence is being presented that MTL made best efforts to contact Mr. Ostrovskiy, however, he had disappeared and abandoned his property just like he did with Bobcat motorcycles, vehicles, and other personal property all over Europe.

Additionally, the fact that Mr. Ostrovskiy disappeared is corroborated by looking at the State governmental records of his companies. Upon information and belief, the source of such information being a review of the New York State Department of State record and Indiana Secretary of State business information records, MAVL Capital, Inc., and I AM & Group Inc have been dissolved: MAVL in 2016 and I AM & AL in 2015.

Mr. Nussbaum then claims that there was an alteration to the initial Invoice #24261 because the subsequent invoice charged storage at \$10 per day for 31 days and not a flat \$150 monthly fee. By making this false statement, Mr. Nussbaum has withheld from this Court and the Commission the following document: an email sent from Dimitry Alper on February 24,

2014, which says in relevant part: “Mavl never paid a single invoice for storage. After ___ months have past due to non payment from Mavl, MTL retracted its initial offer for storage charges and charged Mavl at Tariff.” (Exhibit “10”). Where is this email in the hundreds of pages of exhibits entitled “sanctions” that Mr. Nussbaum submitted?

Furthermore, there can be no dispute that the Mercedes and Porsche vehicles were properly exported out of the United States and came into the possession of Mr. Nussbaum’s other client, Mr. Safonov of Middle East Asia Alfa, who gave the following answer when I deposed him as part of the New Jersey Federal Court matter and is found on page 212 of the Complainants’ own Appendix to this motion:

Q. So let’s focus on the 2006 Mercedes SL65 and the 2011 Porsche, the vehicles that are the subject of your third-party complaint. Did there come a time when you physically saw these vehicles?

A. I don’t remember exactly, but it was in the fall, maybe September or October, of 2013.

Q. How did it come about that these vehicles ended up in Dubai?

A. I don’t remember.

Q. But you remember looking at these vehicles; correct?

A. Yes, I remember. I paid for the repairing of those car and I paid customs duties for those cars.

The Court is also respectfully being referred to the part of Ms. Solovyeva’s affidavit and exhibits that detail other property for which MAVL failed to pay and then subsequently disappeared, and of course, none of those documents made their way into Mr. Nussbaum’s motion papers or exhibits.

WHEREFORE:

As a result of the foregoing, the motion should be denied in its entirety.

Respectfully Submitted,

Dated: February 2, 2021

Garry Pogil

Garry Pogil (*Attorney for Marine Transport Logistics, Inc.*)
1120 Avenue of the Americas, 4th Floor
New York, NY 10036
212-626-6825

Federal Maritime Commission

MAVL Capital, et al.

v.

MARINE TRANSPORT LOGISTICS, INC.,
DIMITRY ALPER

Docket No. 16-16

**EXHIBITS TO MTL'S
OPPOSITION TO MOTION
SEEKING SANCTIONS**

Certification of Alla Solovyeva

1. Proof of dissolution of Complainant corporations.
2. Payment Receipts for storage of the subject Mercedes.
3. Bills to MTL for storage of Mavl's property.
4. Bills from MTL to Mavl as to furniture.
5. Bills from MTL to Mavl as to storage of 2012 Volkswagen.
6. Bills from Car Express and CMB Transport to MTL as to the 2012 Volkswagen.
7. Documents concerning the Bobcats transactions.
8. Bill from MTL to Mavl as to storage of the 2004 Volvo.
9. Documents evidencing dealings involving Mavl and other individuals/companies.
10. Email by Dmitry Alper, dated February 24, 2014. p

Federal Maritime Commission

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MARINE TRANSPORT LOGISTICS, INC.,
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Respondents.

Docket No. 16-16

**CERTIFICATION OF ALLA
SOLOVYEVA ON BEHALF OF
MARINE TRANSPORT
LOGISTICS, INC.**

ALLA SOLOVYEVA, on behalf of Marine Transport Logistics, Inc., states as follows under penalties of perjury:

MAVL Capital has not paid a single dollar towards the services that were provided to him by my company. I provided evidence that my company tried to contact Mr. Ostrovskiy many times, and provided all invoices, however, just like Mr. Ostrovskiy abandoned motorcycles and other property (more on this below) all over Europe, forcing me to cover the costs of storage and other charges for such, he has abandoned the Mercedes and Porsche by not paying for services, including storage and freight.

The fact that my company made best efforts to contact Ms. Ostrovskiy — who did not respond to us —in addition to the communications that I have provided, is supported by a review of the New York State Department of State records and Indiana Secretary of State business information records, which reveal that MAVL Capital, Inc., and I AM & Group Inc have been dissolved: MAVL in 2016 and I AM & AL in 2015. (Exhibit “1”).

When I answered the interrogatories in December of 2014, I said that the Mercedes and the Porsche were exported to Dubai by Car Express, so it is not true that the initial invoice, which lists Atlantic Cargo as the shipper was fraudulently altered to be used in these proceedings in 2021.

With respect to the Mercedes, the reason why Car Express was subsequently listed as the shipper, was because after my company could not locate Mr. Ostrovskiy, Car Express found the customer (Middle East Asia Alfa) who paid for outstanding storage charges and the vehicle was transferred to Car Express as it is an authorized dealer so the vehicle could lawfully be exported out of the United States. Attached to this Certification as Exhibit “2” are MTL’s payment receipts, which indicates that Middle East Asia Alfa paid for the listed invoices.¹ “USPPI” is typically either a dealer or an auction, and since Middle East Asia Alfa was neither a dealer nor an auction, it would not have been proper to list it as the shipper as it would not be USPPI. This is why the invoice for storage charges was transferred from MAVL to Middle East Asia Alfa.

When a lien was asserted, I offered this vehicle to all my customers and dealers, and Car Express’s client, Middle East Asia Alfa, paid for the storage. Car Express, as a lawful dealer, found the buyer for the Mercedes and Porsche, and acted as a third party between MTL and the consignee. As far as I am aware, a vehicle may be exported out of the United States if the USPPI is an auto auction, dealership, or the direct purchaser listed on the title, and albeit Car Express’s involvement with respect to the Mercedes was limited, I believe that they were the lawful entity to be designated as the USPPI.

¹ The reason why on page 1 of this exhibit it says “Unknown Customer” is that when initially clients submit payment, such as by wire transfer, it is not immediately known who sent the payment and to which invoice the client would like to apply the payment.

Car express is the one who would have sent invoices for storage of the Porsche to Ostrovskiy as Car Express is MTL's client with respect to the Porsche, not MAVL. With respect to the Mercedes, MAVL was MTL's client.

MAVL failed to pay for the following (aside from the subject vehicles):

A. shipment of chairs for vehicles that were loaded and sent to Bremerhaven. This cargo collected storage charges in Germany, and the receiving Agent Cross Trans collected such charges from MTL in full. (Exhibit "3"). This cargo was destroyed or salvaged. Additionally, the ocean freight to the ocean carrier was paid by MTL, and the inland freight and storage was paid by MTL because MAVL failed to make any payment (Exhibit "4").

B. 2012 Volkswagen Jetta. This vehicle was abandoned and salvaged. MAVL failed to pay Invoices #20059 and 33214 (Exhibit "5"), which included the inland freight, storage charges and other fees. MTL was billed for these services by CMB Transport and Car Express. (Exhibit "6").

C. Bobcats shipped to Kotka, Finland. MAVL failed to pay for domestic delivery, ocean freight to Kotka and storage. As a result of such failure, the Bobcats were abandoned and salvaged. The relevant documents as to this transactions are attached collectively as Exhibit "7."

D. 2004 Volvo. This truck was delivered, MTL paid \$1,950 for the delivery in cash (special order from the customer), however, MAVL failed to pay the attached invoice (Exhibit "8").

Additionally, attached (collectively as Exhibit "9") are documents that evidence the course of misconduct by MAVL/Ostrovsky as to other individuals/companies and in further support that MAVL/Ostrovsky tends to disappear and not respond to either lawsuits or demands for payment.

CERTIFICATION

I hereby certify that the foregoing statements made by me are true. I further certify that all the documents presented by me are true and accurate. I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment.


Alla Solovyeva

Dated: 

EXHIBIT 1

NYS Department of State

Division of Corporations

Entity Information

The information contained in this database is current through February 1, 2021.

Selected Entity Name: MAVL CAPITAL, INC.

Selected Entity Status Information

Current Entity Name: MAVL CAPITAL, INC.

DOS ID #: 3715235

Initial DOS Filing Date: SEPTEMBER 02, 2008

County: NEW YORK

Jurisdiction: NEW YORK

Entity Type: DOMESTIC BUSINESS CORPORATION

Current Entity Status: INACTIVE - Dissolution by Proclamation / Annulment of Authority (Jun 29, 2016)

Information to reinstate a corporation that has been dissolved by proclamation or annulment of authority by proclamation is available on the New York State Department of Taxation and Finance website at www.tax.ny.gov keyword TR-194.1 or by telephone at (518) 485-6027

Selected Entity Address Information

DOS Process (Address to which DOS will mail process if accepted on behalf of the entity)

CORPORATION SERVICE COMPANY

80 STATE STREET

ALBANY, NEW YORK, 12207

Registered Agent

CORPORATION SERVICE COMPANY

80 STATE STREET

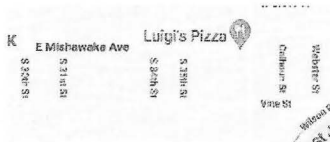
ALBANY, NEW YORK, 12207

This office does not record information regarding the names and addresses of officers, shareholders or directors of nonprofessional corporations except the chief executive officer, if provided, which would be

IAM & AL GROUP INC. (Business ID 2012040900030) was incorporated on 04/05/2012 in Indiana. Their business is recorded as Domestic For-Profit Corporation. The Company's current operating status is **Admin Dissolved**.

Added: 2018-07-29 20:40 **Updated:** 2020-11-24 22:27

Main Address: 100 N CENTER ST, STE 131, MISHAWAKA, IN, 46544, USA



Type	Individual
Name	MAXIM OSTROVSKIY
Address	100 N CENTER ST, STE 131, MISHAWAKA, IN, 46544 - , USA

Similar Names

IAMMYHBCU INC.

IAM PETROLEUM INC.

IAMIN CO.

IAME, LLC

IAM COMMUNICATIONS CORP.

IAMS AND ASSOCIATES MEDICAL SUPPLY LLC

IAM ACQUISITION, LLC

IAMHANDY, INC.

IAM VENTURES, LLC

IAMARTIAM, INC.

Registered On 04/05/2012

[SOUTH BEND WAREHOUSING LLC](#)
[DLR TRANSPORT, LLC](#)
[DENNO-OHIO LLC](#)
[CROSS RIVER CONSTRUCTORS LLC](#)
[BIRDIE 3 LLC](#)
[V & N LLC](#)
[LEE'S RENTALS, LLC](#)
[J. J. TAYLOR ENTERPRISES LLC](#)
[UES USA INC.](#)
[CO-CARS LLC](#)

« J AND M PRESERVATION INCORPORATED

THEGUIDESCOUT.COM LLC »

Comments

No comment

Add Comment

Leave a message

[Privacy - Terms](#)

EXHIBIT 2

Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ 07002.
USA

Payment Receipt

Check Number:	PAYMENT
Date:	07/13/2013
Amount:	USD 0.00

Received From:	Middle East Asia Alfa FZC
Memo:	

Items Paid					
Type	Number	References	Original Amount	Amount Due	Amount Paid
Invoice	18091	Warehouse Receipt: 83636	310.00	0.00	310.00
Invoice	19098	Warehouse Receipt: 83636	300.00	0.00	300.00
Invoice	20622	Warehouse Receipt: 83636	280.00	0.00	280.00
Invoice	23343	Warehouse Receipt: 83636	310.00	0.00	310.00
Invoice	23344	Warehouse Receipt: 83636	300.00	0.00	300.00
Invoice	24261	Warehouse Receipt: 83636	310.00	0.00	310.00
Invoice	25551	Warehouse Receipt: 83636	300.00	0.00	300.00
Invoice	27830	UNKNOWN CUSTOMER	510.00	0.00	510.00
					-2,620.00

Magaya Cargo System. www.magaya.com

Total Amount:	USD	0.00
Outstanding Balance:	USD	665.00

Created: 06/11/2013

	Cash Total	2,775.00
WT		1,385.00
WT		2,400.00
WT		1,000.00
WT		1,625.00
DEP		2,125.00
WT		11,825.00

Check Items

--	--

Check Items

--	--

Check Items

6

23,135.00

Total Amount

63 New Hook Rd, Bayonne, NJ 07002

Date: 06/11/2013

Account Name: TD BANK 409842

Telephone: 201-858-8600 Fax: 201-858-8607

Account #: 7919409842

Memo:

DEPOSIT RECEIPT

Check Number	Name	Invoice Reference	Amount
WT	SEAMASTER AUTO INC	23369, 24892	1,385.00 USD
WT	UNITED MOTORS, INC	24550	2,400.00 USD
WT	PEOPLE AND TECH CORP USA	25191	1,000.00 USD
WT	All Transport Export Inc	24726	1,625.00 USD
DEP	POPALAMINA CORP	24950	2,125.00 USD
WT	NJ CAR EXPO INC	24430, 24626, 24692, 24746, 24	11,825.00 USD
	UNKNOWN CUSTOMER		2,775.00 USD

Total Amount: USD 23,135.00

63 New Hook Rd
Bayonne, NJ 07002.
USA

Check Number:	
Date:	06/11/2013
Amount:	USD2,775.00

Received From:	UNKNOWN CUSTOMER
Memo:	

[illegible]

EXHIBIT 3

Steuben Str. 7b
Bremerhaven, D-27568.
GERMANY

Bill to

63 New Hook Rd, Bayonne, NJ 07002 USA, Tel:
201-858-8600, Fax: 201-858-8607

Date	Due Date	Number
May/08/2013	May/15/2013	162827
Payment Terms	Net 7	
Shipper:	Marine Transport Logistic Inc	
Consignee:	CROSS TRANS SERVICE GMBH	
Origin/Destination:	NYC / BRV	
Entry Date:	Jul/15/2013	
Carrier:	HYUNDAI MERCHANT MARINE (AMER	
AWB / BL No.:	EO-22456	
House Way Bill:		
Pieces / Weight:	1 / 0.00 lb	
Booking Number:	NYYNY440126	
Container #:	CAIU8033698	
Master Shipment Name:	EO-22456	

[illegible]

CROSS TRANS SERVICE G

Steuben Str. 7b
Bremerhaven, D-27568.
GERMANY

Bill

Date	Due Date	Number
Sep/02/2015	Sep/09/2015	168389

Payment Terms

Net 7

Bill to

Marine Transport Logistic, Inc.
63 New Hook Rd, Bayonne, NJ 07002 USA, Tel:
201-858-8600, Fax: 201-858-8607

Shipper: Marine Transport Logistic Inc
Consignee: CROSS TRANS SERVICE GMBH
Origin/Destination: NYC / BRV
Entry Date: Jul/15/2013
Carrier: HYUNDAI MERCHANT MARINE (AMER
AWB / BL No.: EO-22456
House Way Bill:
Pieces / Weight: 1 / 0.00 lb
Booking Number: NYNY440126
Container #: CAIU8033698
Master Shipment Name: EO-22456

Description of Charges

Quantity

Price

Amount

Destination Storage Charge Cost
hummer seats (APR-7-2014-AUG-31-2015) 16 mnth@25 eur

400.00

1.14

456.00

► USD

456.00

CROSS TRANS SERVICE G

Steuben Str. 7b
Bremerhaven, D-27568.
GERMANY

Bill

Date	Due Date	Number
Jul/22/2016	Jul/29/2016	172699

Payment Terms	Net 7
Shipper:	Marine Transport Logistic Inc
Consignee:	CROSS TRANS SERVICE GMBH
Origin/Destination:	NYC / BRV
Entry Date:	Jul/15/2013
Carrier:	HYUNDAI MERCHANT MARINE (AMER
AWB / BL No.:	EO-22456
House Way Bill:	
Pieces / Weight:	1 / 0.00 lb
Booking Number:	NYNY440126
Container #:	CAIU8033698
Master Shipment Name:	EO-22456

Bill to

Marine Transport Logistic, Inc.
63 New Hook Rd, Bayonne, NJ 07002 USA, Tel:
201-858-8600, Fax: 201-858-8607

Description of Charges	Quantity	Price	Amount
Destination Storage Charge Cost Hummer seats (1-Sep-15-31-Dec-15) 18wk@9eur hummer seats	162.00	1.14	184.68

► USD 184.68

Steuben Str. 7b
Bremerhaven, D-27568.
GERMANY

Date	Due Date	Number
May/08/2013	May/15/2013	162827
Payment Terms		Net 7
Shipper:		Marine Transport Logistic Inc
Consignee:		CROSS TRANS SERVICE GMBH
Origin/Destination:		NYC / BRV
Entry Date:		Jul/15/2013
Carrier:		HYUNDAI MERCHANT MARINE (AMER
AWB / BL No.:		EO-22456
House Way Bill:		
Pieces / Weight:		1 / 0.00 lb
Booking Number:		NYNY440126
Container #:		CAIU8033698
Master Shipment Name:		EO-22456

Marine Transport Logistic, Inc.
63 New Hook Rd, Bayonne, NJ 07002 USA, Tel:
201-858-8600, Fax: 201-858-8607

[illegible]

EXHIBIT 4



Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ. 07002
USA

201-858-8600

Invoice

Reference #

HBOL15168

Date

Due Date

Number

Mar/26/2014

Apr/02/2014

34378

Bill to

MAVL Capital, Inc
115E 57th Str, FL11
New York, NY 10022.
USA

Shipper: MAVL CAPITAL
Consignee:
Origin/Destination: NYC / BRV
Entry Date: Jul/15/2013
Carrier: HYUNDAI MERCHANT MARINE (AM
AWB / BL No.: EO-22456
House Way Bill: HBOL15168
Pieces / Weight: 1 / 150.00 lb
Booking Number: NYNY440126
Desc. of Goods: 2 CHAIRS
Container #: CAIU8033698

Year

Make

Model

VIN

Notes

Description of Charges

Description of Charges	Quantity	Price	Amount
Storage Fee (31 weeks / 400 Euro)	1.00	1,035.00	1,035.00
Ocean Freight Service Rate	1.00	500.00	500.00
Storage Fee (MTL 6 months @ \$10/day)	181.00	10.00	1,810.00

TERMS AND CONDITIONS:

This invoice contains cash outlays advanced for your account. Payments must be received no later than 10 business days after sailing date. Past due invoices are subject to mandatory late payment fee of \$250 plus the cost of collection. Please remit promptly. All sales are final. No refunds. Marine Transport Logistics credit only.

USD

3,345.00

PLEASE PAY THIS AMOUNT

RETURN PORTION

To Ensure Proper Credit, Please Return This Portion With Payment

Marine Transport Logistics
63 New Hook Rd
Bayonne, NJ 07002
Phone 201-858-8600 / Fax: 201 858-8607
www.mtlworld.com

Reference #: HBOL15168

Invoice #.....: 34378

Invoice Date: Mar/26/2014
Container Number: CAIU8033698
Origin: NYC
Destination: BRV
Amount: USD 3,345.00

Year	Make	Model	VIN



Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ. 07002
USA

201-858-8600

Invoice

Reference #

HBOL15168

Date

Due Date

Number

Aug/06/2013

Aug/13/2013

27343

Bill to

MAVL Capital, Inc

Shipper:

MAVL CAPITAL

Consignee:

Origin/Destination:

NYC / BRV

Entry Date:

Jul/15/2013

Carrier:

HYUNDAI MERCHANT MARINE (AM

AWB / BL No.:

EO-22456

House Way Bill:

HBOL15168

Pieces / Weight:

1 / 150.00 lb

Booking Number:

NYNY440126

Desc. of Goods:

2 CHAIRS

Container #:

CAIU8033698

Year

Make

Model

VIN

Notes

Description of Charges

Quantity

Price

Amount

Storage Fee (LV furniture)

1.00

310.00

310.00

Inland Freight

4.00

150.00

600.00

TERMS AND CONDITIONS:

This invoice contains cash outlays advanced for your account. Payments must be received no later than 10 business days after sailing date. Past due invoices are subject to mandatory late payment fee of \$250 plus the cost of collection. Please remit promptly. All sales are final. No refunds. Marine Transport Logistics credit only.

USD

910.00

PLEASE PAY THIS AMOUNT

RETURN PORTION

To Ensure Proper Credit, Please Return This Portion With Payment

Marine Transport Logistics

63 New Hook Rd

Bayonne, NJ 07002

Phone 201-858-8600 / Fax: 201 858-8607

www.mtlworld.com

Reference #: HBOL15168

Invoice #.....: 27343

Invoice Date: Aug/06/2013

Container Number: CAIU8033698

Origin: NYC

Destination: BRV

Amount: USD 910.00

Year

Make

Model

VIN

EXHIBIT 5



Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ. 07002
USA

201-858-8600

Invoice

Reference #

77853

Date	Due Date	Number
Feb/21/2013	Feb/28/2013	20059

Bill to	Document Number:	77853
MAVL Capital, Inc	Shipper:	OSTROVSKIY MAXIM
	Consignee:	
	Entry Date:	Feb/13/2013
	Origin/Destination:	NYC /
	Carrier:	
	Pieces / Weight:	1 / 3,082.00 lb

Year	Make	Model	VIN	Notes
2012	Volkswagen	Jetta	3VWDP7AJ3CM348564	v#348564

Description of Charges	Quantity	Price	Amount
Inland Freight (v#348564 Carteret, NJ-Brooklyn-Bayonne, NJ)	1.00	200.00	200.00
Storage Fee (v#348564 @ IAAI)	1.00	100.00	100.00
Other Charges (MTL handling fee)	1.00	200.00	200.00
Purchases (by the customer request)	1.00	1,004.00	1,004.00

TERMS AND CONDITIONS:

This invoice contains cash outlays advanced for your account. Payments must be received no later than 10 business days after sailing date. Past due invoices are subject to mandatory late payment fee of \$250 plus the cost of collection. Please remit promptly. All sales are final. No refunds. Marine Transport Logistics credit only.

USD ►

1,504.00

PLEASE PAY THIS AMOUNT

RETURN PORTION

To Ensure Proper Credit, Please Return This Portion With Payment

Marine Transport Logistics
63 New Hook Rd
Bayonne, NJ 07002
Phone 201-858-8600 / Fax: 201 858-8607
www.mtlworld.com

Reference #: 77853

Invoice #.....: 20059

Invoice Date: Feb/21/2013

Container Number:

Origin: NYC

Destination:

Amount: USD 1,504.00

Year	Make	Model	VIN
2012	Volkswagen	Jetta	3VWDP7AJ3CM348564



Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ. 07002
USA

201-858-8600

Invoice

Reference #

77853

Date

Due Date

Number

Jul/25/2013

Aug/01/2013

33214

Bill to

MAVL Capital, Inc
115E 57th Str, FL11
New York, NY 10022.
USA

Document Number: 77853
Shipper: OSTROVSKIY MAXIM
Consignee:
Entry Date: Feb/13/2013
Origin/Destination: NYC /
Carrier:
Pieces / Weight: 1 / 3,082.00 lb

Year

Make

Model

VIN

Notes

2012

Volkswagen

Jetta

3VWDP7AJ3CM348564

Description of Charges

Quantity

Price

Amount

Storage Fee (02.13.13-07.25.13)
In - Out Fee (v#348564)

163.00
1.00

10.00
35.00

1,630.00
35.00

TERMS AND CONDITIONS:

This invoice contains cash outlays advanced for your account. Payments must be received no later than 10 business days after sailing date. Past due invoices are subject to mandatory late payment fee of \$250 plus the cost of collection. Please remit promptly. All sales are final. No refunds. Marine Transport Logistics credit only.

USD ▶

1,665.00

PLEASE PAY THIS AMOUNT

RETURN PORTION

To Ensure Proper Credit, Please Return This Portion With Payment

Marine Transport Logistics
63 New Hook Rd
Bayonne, NJ 07002
Phone 201-858-8600 / Fax: 201 858-8607
www.mtlworld.com

Reference #: 77853

Invoice #.....: 33214

Invoice Date: Jul/25/2013

Container Number:

Origin: NYC

Destination:

Amount: USD 1,665.00

Year

Make

Model

VIN

2012

Volkswagen

Jetta

3VWDP7AJ3CM348564

EXHIBIT 6

CAR EXPRESS & IMPORT I

63 New Hook Rd.
Bayonne, NJ 07002.
USA

Bill

Date	Due Date	Number
Feb/21/2013	Feb/28/2013	348564

Payment Terms

Bill to

Marine Transport Logistic, Inc.

63 New Hook Rd, Bayonne, NJ 07002 USA, Tel:
201-858-8600, Fax: 201-858-8607

Document Number: 77853
Shipper: OSTROVSKIY MAXIM
Consignee:
Entry Date: Feb/13/2013
Origin/Destination: NYC /
Carrier:
Pieces / Weight: 1 / 3,082.00 lb

Description of Charges

Quantity

Price

Amount

Purchases cost
V#348564 OSTROVSKIY

1.00

1,004.00

1,004.00

► USD

1,004.00

MAVL

CMB TRANSPORT LLC

562 South Park St.
Elizabeth, NJ 07206.
USA

Bill

Date	Due Date	Number
Feb/21/2013	Feb/28/2013	30727

Payment Terms

Bill to

Marine Transport Logistic, Inc.
63 New Hook Rd, Bayonne, NJ 07002 USA, Tel:
201-858-8600, Fax: 201-858-8607

Document Number: 77853
Shipper: OSTROVSKIY MAXIM
Consignee:
Entry Date: Feb/13/2013
Origin/Destination: NYC /
Carrier:
Pieces / Weight: 1 / 3,082.00 lb

Description of Charges	Quantity	Price	Amount
Inland Freight Cost PO#7718 V#348564	1.00	200.00	200.00
Storage Cost PO#7718 V#348564	1.00	100.00	100.00
► USD			300.00

EXHIBIT 7



Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ. 07002
USA

201-858-8600

Invoice

Reference #

HBOL15488

Date

Due Date

Number

Aug/19/2013

Aug/26/2013

27764

Bill to

MAVL Capital, Inc
115E 57th Str, FL11
New York, NY 10022.

Shipper: MAVL Capital, Inc
Consignee: TO THE ORDER OF SHIPPER
Origin/Destination: NYC / KTK
Entry Date: Jul/31/2013
Carrier: ORIENT OVERSEAS CONTAINER L
AWB / BL No.: EO-22870
House Way Bill: HBOL15488
Pieces / Weight: 2 / 10,148.00 lb
Booking Number: 2536515355
Desc. of Goods: BOBCAT S-250
Container #: OOLU9376830

Year

Make

Model

VIN

Notes

BOBCAT
BOBCAT

S-250
S205

530912346
530511404

Description of Charges

Quantity

Price

Amount

Ocean Freight Service Rate (v#912346/511404)

2.00

800.00

1,600.00

Ground Freight Service (vin#912346)

1.00

1,000.00

1,000.00

TERMS AND CONDITIONS:

This invoice contains cash outlays advanced for your account. Payments must be received no later than 10 business days after sailing date. Past due invoices are subject to mandatory late payment fee of \$250 plus the cost of collection. Please remit promptly. All sales are final. No refunds. Marine Transport Logistics credit only.

USD ►

2,600.00

PLEASE PAY THIS AMOUNT

RETURN PORTION

To Ensure Proper Credit, Please Return This Portion With Payment

Marine Transport Logistics

63 New Hook Rd

Bayonne, NJ 07002

Phone 201-858-8600 / Fax: 201 858-8607

www.mtlworld.com

Reference #: HBOL15488

Invoice #.....: 27764

Invoice Date: Aug/19/2013

Container Number: OOLU9376830

Origin: NYC

Destination: KTK

Amount: USD 2,600.00

Year

Make

Model

VIN

BOBCAT
BOBCAT

S-250
S205

530912346
530511404

TJK Transport LLC

8934 L Streret
Omaha, NE 68127.
USA

Bill

Date	Due Date	Number
Jun/27/2013	Jul/04/2013	39306

Payment Terms

Document Number: 86844
Shipper: MAVL Capital, Inc
Consignee:
Entry Date: Jun/27/2013
Origin/Destination: NYC / KTK
Carrier: TJK Transport LLC
Pieces / Weight: 1 / 5,697.00 lb

Bill to

Marine Transport Logistic, Inc.
63 New Hook Rd, Bayonne, NJ 07002 USA, Tel:
201-858-8600, Fax: 201-858-8607

Description of Charges	Quantity	Price	Amount
Inland Freight Cost VIN#912346	1.00	1,000.00	1,000.00
► USD			1,000.00

Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ 07002.

1767

06/27/2013

PAY TO THE
ORDER OF

TJK Transport LLC

\$ 1,000.00

One thousand

00/100

DOLLARS

TJK Transport LLC
8934 L Streret
Omaha, NE 68127.
USA

MEMO v#912346

402031253

Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ 07002.
USA

1767

06/27/2013

TJK Transport LLC

Bill 39306, Warehouse Receipt: 86844

1,000.00

v#912346

1,000.00

Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ 07002.
USA

1767

06/27/2013

TJK Transport LLC

Bill 39306, Warehouse Receipt: 86844

1,000.00

v#912346

1,000.00



2. EXPORTER (Principal or seller-licensee and address including ZIP Code)

MAVL Capital, Inc
115E 57th Str, FL11
New York, NY 10022

ZIP CODE

5. DOCUMENT NUMBER

2536515355

5a. B/L NUMBER

HBOL15488

6. EXPORT REFERENCES

MBL: EO-22870

3. CONSIGNED TO

TO THE ORDER OF SHIPPER

7. FORWARDING AGENT (Name and address - references)

8. POINT (STATE) OF ORIGIN OR FTZ NUMBER

4. NOTIFY PARTY/INTERMEDIATE CONSIGNEE (Name and address)

Albatros Europe Oy
Satamantie 4 office 2115, Tel: +358443201263,
Hamina 49460. FINLAND

9. DOMESTIC ROUTING/EXPORT INSTRUCTIONS

12. PRE-CARRIAGE BY

13. PLACE OF RECEIPT BY PRE-CARRIER

ETD

ETA

14. EXPORTING CARRIER

15. PORT OF LOADING/EXPORT

OOCL KUALA LUMPUR / 058E

New York

10. LOADING PIER/TERMINAL

16. FOREIGN PORT OF UNLOADING (Vessel and air only)

17. PLACE OF DELIVERY BY ON-CARRIER

11. TYPE OF MOVE

Vessel, Containerized

11a. CONTAINERIZED (Vessel only)

Yes ☒ No ☐

MARKS AND NUMBERS

(18)

NUMBER
OF PACKAGES
(19)

DESCRIPTION OF COMMODITIES in Schedule B detail

(20)

GROSS WEIGHT
(Kilos)
(21)

MEASUREMENT

(22)

WR 86844

1 PCS

40 Ft. High Cube
No.:OOLU9376830 Seal:7266972
BOBCAT S-250
VIN:530912346
BOBCAT S205
VIN:530511404

AES ITN:X20130806042115

2,584.12 Kg
"5,697.00 Lb"
2,018.94 Kg
"4,451.00 Lb"0.00 ft?
"0.00 Vlb"
0.00 ft?
"0.00 Vlb"

2

4,603.06 Kg
10,148.00 lb0.00 Vlb
0.00 ft?

Carrier has a policy against payment, solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the United States Shipping Act, 1984 as amended.

DECLARED VALUE READ CLAUSE 29 HEREOF CONCERNING EXTRA FREIGHT AND CARRIER'S LIMITATION OF LIABILITY.

FREIGHT RATES, CHARGES, WEIGHTS AND/OR MEASUREMENTS

SUBJECT TO CORRECTION

PREPAID

COLLECT

GRAND TOTAL

RECEIVED, by the Carrier as described on the reverse hereof (hereinafter called the Carrier) from the above name shipper, the goods, or package said to contain goods, hereinabove described, in aparent good order and condition unless otherwise noted hereon, to be held and transported subject to all written, typed printed or stamped provisions of this bill of lading, on this and on the reverse side hereof, to the port or place of discharge named above or so near thereunto as the ship can always safely get and leave always afloat at the stages and conditions of water and weather and there to be delivered or transshipped on payment of the charges

By July 31, 2013
Marine Transport Logistics
SIGNED ON BEHALF OF THE CARRIER

B/L No.

HBOL15488



Marine Transport Logistic, Inc.

FMC: 018709N

DOCK RECEIPT

2. EXPORTER <i>(Principal or seller-licensee and address including ZIP Code)</i> MAVL Capital, Inc 115E 57th Str, FL11 New York, NY 10022 ZIP CODE		5. DOCUMENT NUMBER 2536515355		5a. B/L NUMBER HBOL15488		
3. CONSIGNEE TO TO THE ORDER OF SHIPPER		6. EXPORT REFERENCES MBL: EO-22870				
		7. FORWARDING AGENT <i>(Name and address - references)</i> Marine Transport Logistic Inc 63 New Hook Rd, Bayonne NJ 07002				
4. NOTIFY PARTY / INTERMEDIATE CONSIGNEE <i>(Name and address)</i> Albatros Europe Oy Satamantie 4 office 2115, Tel: +358443201263, Hamina 49460. FINLAND		8. POINT (STATE) OF ORIGIN OR FTZ NUMBER				
		9. DOMESTIC ROUTING/EXPORT INSTRUCTIONS				
12. PRE-CARRIAGE BY		13. PLACE OF RECEIPT BY PRE-CARRIER		ETD 08/05/2013	ETA 08/26/2013	CUT OFF DATE 08/05/2013
14. EXPORTING CARRIER OOCL KUALA LUMPUR / 058		15. PORT OF LOADING/EXPORT New York		10. LOADING PIER/TERMINAL		
16. FOREIGN PORT OF UNLOADING <i>(Vessel and air only)</i> Kotka		17. PLACE OF DELIVERY BY ON-CARRIER		11. TYPE OF MOVE Vessel, Containerized		11a. CONTAINERIZED <i>(Vessel only)</i> ☒ Yes ☐ No
MARKS AND NUMBERS (18)	NUMBER OF PACKAGES (19)	DESCRIPTION OF COMMODITIES (20)			GROSS WEIGHT (Kilos) (21)	MEASUREMENT (22)
WR 86844	1 PCS	40 Ft. High Cube No.:OOLU9376830 Seal:7266972 BOBCAT S-250 VIN:530912346			2,584.12 Kg	0.00 ft?
WR 83433	1 VEH	BOBCAT S205 VIN:530511404 AES ITN:X20130806042115			"5,697.00 Lb" 2,018.94 Kg "4,451.00 Lb"	"0.00 Vlb" 0.00 ft? "0.00 Vlb"
Carrier has a policy payment, solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the United States Shipping Act: 1984 as amended. DECLARED VALUE READ CLAUSE 29 HEREOF CONCERNING EXTRA FREIGHT AND CARRIER'S LIMITATIONS OF LIABILITY.						

DELIVERED BY:LIGHTER
TRUCK

ARRIVED DATE _____ TIME _____

UNLOADED DATE _____ TIME _____

CHECKED BY _____

PLACED IN SHIP ON DOCK LOCATION _____

RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO ALL THE TERMS OF THE UNDERSIGNED'S REGULAR FORM OF DOCK RECEIPT AND BILL OF LADING WHICH SHALL CONSTITUTE THE CONTRACT UNDER WHICH THE GOODS ARE RECEIVED. COPIES OF WHICH ARE AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED AT ANY OF ITS OFFICES.

Important information regarding u.s. customs inspection procedures:

Any and all shipments arriving to or departing from the USA are subject to and can be inspected by the U.S. Customs and Border Protection. U.S. Customs randomly pulls containers for inspection at the port for security & safety reasons. The inspection can be done either at the terminal by x-ray, open visual inspection, or by transferring the container to a bonded warehouse and doing a total de-vanning of the container for inspection of contents.

All charges incurred from the ocean line and/or the bonded warehouse as a result of the U.S. Customs inspection is the total responsibility of the shipper. If these charges are not paid within the given time frame, then the shipper can incur additional storage fees and penalties, with the possibility of their cargo being seized.

Marine Transport Logistics is not responsible for any of the charges resulting from U.S. Customs exams because Marine Transport Logistics is acting on behalf of the shipper, and they do not hold title or ownership of the shipment.

BY _____
RECEIVING CLERK

DATE Jul/31/2013

EXHIBIT 8



Marine Transport Logistic, Inc.

63 New Hook Rd
Bayonne, NJ. 07002
USA

201-858-8600

Invoice

Reference #

84899

Date

Due Date

Number

Aug/16/2013

Aug/26/2013

27702

Bill to

MAVL Capital, Inc

Document Number: 84899
Shipper: OSTROVSKIY MAXIM
Consignee:
Entry Date: May/16/2013
Origin/Destination: NYC /
Carrier:
Pieces / Weight: 1 / 0.00 lb

Year

Make

Model

VIN

Notes

2004

VOLVO

VNL

4V4NC9TG34N355476

Description of Charges

Quantity

Price

Amount

Storage Fee (From 05.16.13 to 08.26.13 (103 days X \$45))
Inland Freight

103.00
1.00

25.00
1,950.00

2,575.00
1,950.00

TERMS AND CONDITIONS:

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USD ▶

4,525.00

PLEASE PAY THIS AMOUNT

RETURN PORTION

To Ensure Proper Credit, Please Return This Portion With Payment

Marine Transport Logistics

63 New Hook Rd

Bayonne, NJ 07002

Phone 201-858-8600 / Fax: 201 858-8607

www.mtlworld.com

Reference #: 84899

Invoice #.....: 27702

Invoice Date: Aug/16/2013

Container Number:

Origin: NYC

Destination:

Amount: USD 4,525.00

Year

Make

Model

VIN

2004

VOLVO

VNL

4V4NC9TG34N355476

EXHIBIT 9

From: [Roman Sobolev](#)
To: ["dimitry@mtlworld.com"](mailto:dimitry@mtlworld.com)
Subject: Fwd: Letters
Date: Monday, May 12, 2014 9:41:25 AM
Attachments: [Affidavit.docx](#)
[Letter to MTL.pdf](#)

Hello,

Let me know if it works, If not I can add statements such as:

Based on failed business transaction with Mr. Ostrovskiy, I can strongly confirm that his business models involves usage of funds from his clients for the products that are not in his inventory.

Thanks

----- Forwarded message -----

From: **Mustafa Ameen, Esq.** <mustafa@ameenshafiiilaw.com>
Date: Fri, May 9, 2014 at 7:22 PM
Subject: Letters
To: Roman Sobolev <rsobolev@gmail.com>

Roman,
Attached is the modified affidavit and letter from my office to MTL.
Regards,

Email Image



Mustafa Ameen, Esq.
The Law Office of Ameen & Shafii
400 N. Ashley Drive, 26th Floor
Tampa, Florida 33602
Office: 813-436-HELP(4357)
Cell: [813-451-4449](tel:813-451-4449)
Fax: [813-466-7975](tel:813-466-7975)

Privileged and Confidential: Unless otherwise indicated or obvious from the nature of the transmittal, the information contained in this message is privileged and/or confidential information intended solely for the use of the addressee. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this communication or any of the information in it is strictly prohibited. If you have received this communication in error, please advise the sender by reply e-mail and then delete the message. Thank you.

--

Roman Sobolev
ph (813)5042972
fax (813)3542425

No virus found in this message.

Checked by AVG - www.avg.com

Version: 2014.0.4570 / Virus Database: 3931/7464 - Release Date: 05/09/14

LAW OFFICE OF AMEEN & SHAFII

ATTORNEYS AT LAW

400 N. ASHLEY DRIVE, 26TH FLOOR

TAMPA, FL 33602

TELEPHONE (813) 436-4357

FAX (813) 466-7975

WWW.AMEENSHAFII.LAW.COM

MUSTAFA AMEEN, ESQ.*+
ANDREW SHAFII, ESQ.*+

*LICENSED IN FLORIDA
+FORMER PROSECUTOR

Friday, May 9, 2014

Marine Transport Logistics, Inc.

RE: *Maval Capital/Maxim Ostrovskiy*

To Whom It May Concern,

Enclosed please find the affidavit of Roman Sobolev regarding his transaction with Maval Capital/Maxim Ostrovskiy for the purchase of a Bobcat worth \$12,900. Mr. Ostrovskiy agreed to refund the full purchase price of the Bobcat after he could not deliver the item, but has failed to fully refund Mr. Sobolev.

Mr. Sobolev is willing to help your company with the pending matter against Mr. Ostrovskiy, please contact him if he can be of further assistance.

Sincerely,

A handwritten signature in dark ink, appearing to read 'Mustafa Ameen', with a stylized, flowing script.

Mustafa Ameen, Esq.

**IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA**

JR TRADE, INC D/B/A ROMAN SOBOLEV and
MOTORCARS WAREHOUSE LLC,
Plaintiff

vs.

CASE NO: 51-2014-SC-1253-ES
Division R

MAVI CAPITAL, INC.,
Defendant

DEFAULT FINAL JUDGMENT

THIS CAUSE having come before the Court for a Pretrial Conference on July 02, 2014, and the Plaintiff having appeared in person and given testimony and the Defendant having failed to appear after proper notice, and the Court having reviewed the file;

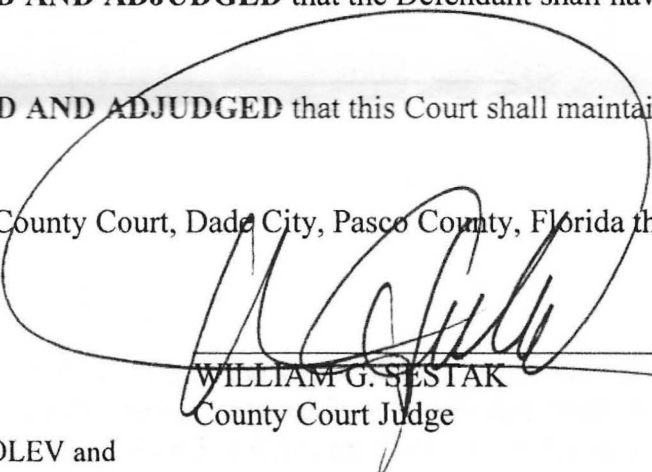
IT IS THEREFORE ORDERED AND ADJUDGED that the Plaintiff, Jr Trade, Inc. d/b/a Roman Sobolev and Motorcars Warehouse LLC, shall recover from the Defendant, Mavi Capital, Inc., the sum of \$2,900.00, plus court cost of \$438.50, plus prejudgment interest from May 05, 2014 in the amount of \$22.27 for a total judgment of \$3,360.77 plus interest at the rate of 4.75% per annum until paid in full. Interest rate to be adjusted per F.S. 55.03.

IT IS FURTHER ORDERED AND ADJUDGED that the Defendant shall complete Florida Small Claims Rules Form 7.343 (Fact Information Sheet- Individual) and return it to the Plaintiff, or Plaintiff's attorney, within 45 days from date of Judgment, unless the Final Judgment is satisfied or a motion for new trial or notice of appeal is filed. Jurisdiction of this case is retained to enter further orders that are proper to compel the Defendant to complete form 7.343 and return it to Plaintiff or Plaintiff's attorney.

IT IS FURTHER ORDERED AND ADJUDGED that the Defendant shall have 30 days in which to appeal this Court's ruling.

IT IS FURTHER ORDERED AND ADJUDGED that this Court shall maintain jurisdiction for purposes of execution.

DONE AND ORDERED in County Court, Dade City, Pasco County, Florida this 2
day of July, 2014.


WILLIAM G. SESTAK
County Court Judge

JR TRADE, INC D/B/A ROMAN SOBOLEV and
MOTORCARS WAREHOUSE, LLC

MAVL CAPITAL, INC.
c/o CORPORATION SERVICE COMPANY AS RA
80 STATE STREET
ALBANY, NY 12207

**IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA**

JR TRADE, INC D/B/A ROMAN SOBOLEV and
MOTORCARS WAREHOUSE LLC,
Plaintiff

vs.

CASE NO: 51-2014-SC-1253-ES
Division R

MAVI CAPITAL, INC,
Defendant

SATISFACTION OF JUDGMENT

I (We) hereby acknowledge satisfaction of the judgment entered in my (our) favor in the captioned case.

Dated this _____ day of _____

Plaintiff(s)

ACKNOWLEDGMENT

Before me, the undersigned authority, personally appeared

known to me to be the person(s) designated as Plaintiff(s) in this known cause and who acknowledged before me that he (she) (they) has (have) received satisfaction of the judgment heretofore entered in this case.

Dated this _____ day of _____

Title

SEAL

INSTRUCTIONS REGARDING THIS FORM:

The Plaintiff(s) shall **sign** before a Notary Public or the Clerk of this Court and mail or deliver this form to the Clerk of this Court **when the Judgment entered in this case has been paid in full** or has been otherwise satisfied. It is a violation of Florida's Criminal Code, after demand, not to satisfy a judgment when the same has been paid or otherwise compromised.

**IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY**

JR TRADE, INC D/B/A ROMAN SOBOLEV and
MOTORCARS WAREHOUSE LLC,
Plaintiff

Vs.

CASE NO: 51-2014-SC-1253-ES
Division R

MAVI CAPITAL, INC.,
Defendant

FACT INFORMATION SHEET- INDIVIDUAL

Full Legal Name:: _____
Nicknames or Aliases: _____
Residence Address: _____
Mailing Address (if different): _____
Telephone Number: (Home) _____ (Business) _____
Name of Employer: _____
Address of Employer: _____
Position or Job Description: _____
Rate of Pay: \$ _____ per _____. Average paycheck: \$ _____ per _____.
Average Commissions or Bonuses: \$ _____ per _____.
Commissions or bonuses are based on _____
Other Personal Income: \$ _____ from _____
(Explain details on the back of this sheet or an additional sheet if necessary.)
Social Security Number: _____ Birthdate: _____
Driver's License Number: _____
Marital Status: _____ Spouse's Name: _____
Spouse's Address (if different): _____
Spouse's Social Security Number: _____ Birthdate: _____
Spouse's Employer: _____
Spouse's Average Paycheck or Income: \$ _____ per _____.
Other Family Income: \$ _____ per _____ (Explain details on back of this sheet or an additional sheet if necessary.)
Name and Ages of All Your Children (and addresses if not living with you): _____

Child Support or Alimony Paid: \$ _____ per _____.
Names of Others You Live With: _____
Who is Head of Your Household? _____ You _____ Spouse _____ Other person _____
Checking Account at: _____ Account No.: _____
Savings Account at: _____ Account No: _____

(Describe all other accounts or investments you may have, including stocks, mutual funds, savings bonds, or annuities, on the back of this sheet or an additional sheet if necessary.)

For Real Estate (land) You Own or Are Buying:

Address: _____
All Names on Title: _____
Mortgage Owed to: _____
Balance Owed: _____ Monthly Payment: \$ _____
(Attach a copy of the deed or mortgage, or list the legal description of the property on the back of this sheet or an additional sheet if necessary. Also provide the same information on any other property you own or are buying.)

For All Motor Vehicles You Own or Are Buying:

Year/Make/Model: _____ Color: _____
Vehicle I.D. No.: _____ Tag No.: _____ Mileage: _____
Names on Title: _____ Present Value: \$ _____
Loan Owed to: _____
Balance on Loan: \$ _____ Monthly Payment: \$ _____

(List all other automobiles, as well as other vehicles, such as boats, motorcycles, bicycles, or aircraft, on the back of this sheet or an additional sheet if necessary.)

Have you given, sold, loaned, or transferred any real or personal property worth more than \$100 to any person in the last year? If your answer is "yes", describe the property and sale price, and give the name and address of the person who received the property.

Does anyone owe you money: Amount Owed: \$ _____
Name and Address of Person Owing Money: _____
Reason money is owed: _____

Please attach copies of the following:

1. Your last pay stub.
2. Your last three (3) statements for each bank, savings, credit union, or other financial account.
3. Your motor vehicle registrations and titles.
4. Any deeds or titles to any real or personal property you own or are buying, or leases to property you are renting.

UNDER PENALTY OF PERJURY, I SWEAR OR AFFIRM THAT THE FOREGOING ANSWERS ARE TRUE AND COMPLETE.

Judgment Debtor

STATE OF FLORIDA
COUNTY OF _____

The foregoing instrument was acknowledged before me on _____ day of _____, 20____,
by _____, who is personally known to be or has produced _____
as identification and who _____ did _____ did not take an oath.

WITNESS my hand and official seal, on _____ day of _____, 20____.

Notary Public

State of Florida
My commission expires: _____
Form 7.343 Fact Information Sheet

IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

512014SC01253ES

JR Trade Inc dba Roman Sobolev &
Motorcars Warehouse LLC

Case No.:

Section:

R

Plaintiff(s)

vs.

Send Original Return of Service to:

Maul Capital, Inc

Defendant(s)

SUMMONS/NOTICE TO APPEAR FOR PRETRIAL CONFERENCE

STATE OF FLORIDA - NOTICE TO PLAINTIFF(S) AND DEFENDANT(S)

Maul Capital, Inc

By serving Registered Agent

Corporation Service Company

80 State Street Albany, NY, 12207

YOU ARE HEREBY NOTIFIED that you are required to appear in person or by attorney at:



West Pasco Judicial Center, 7530 Little Road, New Port Richey, FL., Courtroom



Pasco County Courthouse 38053 Live Oak Ave, Dade City, FL., Courtroom

C

on the 2 day of July, 2014 at 1:30pm for a PRETRIAL CONFERENCE before
the Honorable Judge Vahedkar

IMPORTANT - READ CAREFULLY

THE CASE WILL NOT BE TRIED AT THIS TIME

DO NOT BRING WITNESSES - APPEAR IN PERSON OR BY ATTORNEY

The defendant(s) must appear in court on the date specified in order to avoid a default judgment against you. The plaintiff(s) must appear to avoid having the case dismissed for lack of prosecution. A written MOTION or ANSWER to the Court by the plaintiff(s) or the defendant(s) shall not excuse the personal appearance of a party or its attorney at the PRETRIAL CONFERENCE. The date and/or time of the Pretrial Conference CANNOT be rescheduled without good cause and prior court approval. If you desire to file a counter-claim, it must be filed with the court not less than five (5) days prior to the above date, with a copy to the plaintiff, or within such time as the court orders.

A corporation may be represented at any stage of the trial court proceedings by an officer of the corporation or any employee authorized in writing by an officer of the corporation. Written authorization must be brought to the Pretrial Conference.

The purpose of the pretrial conference is to record your appearance, to determine if you admit all or part of the claim, to enable the court to determine the nature of the case, and to set the case for trial if the case cannot be resolved at the pretrial conference. You or your attorney should be prepared to confer with the court and to explain briefly the nature of your dispute; state what efforts have been made to settle the dispute, exhibit any documents necessary to prove the case, state the names and addresses of your witnesses; stipulate to the facts that will require no proof and will expedite the trial; and estimate how long it will take to try the case.

Mediation may take place at the pretrial conference. Whoever appears for a party must have full authority to settle. Failure to have full authority to settle at this pretrial conference may result in the imposition of costs and attorney fees incurred by the opposing party.

If you admit the claim, but desire additional time to pay, you must come and state the circumstances to the Court. The Court may or may not approve a payment plan and withhold Judgment or Execution or Levy.

RIGHT TO VENUE. The law gives the person or company who has sued you the right to file in any one of several places as listed below. However, if you have been sued in any place other than one of these places, you, as the defendant(s), have the right to request that the case be moved to a proper location or venue. A proper location or venue may be one of the following: (1) where the contract was entered into; (2) if suit is on an unsecured promissory note, where the note is signed or where the maker resides; (3) if the suit is to recover property or to foreclose a lien, where the property is located; (4) where the event giving rise to the suit occurred; (5) where any one or more of the defendants sued reside; (6) any location agreed to in a contract; (7) in an action for money due, if there is no agreement as to where suite may be filed, where payment is to be made.

If you, as the defendant(s), believe the plaintiff(s) has/have not sued in one of these correct places, you must appear on your court date and orally request a transfer or you must file a WRITTEN request for transfer, in affidavit form (sworn to under oath) with the court 7 days prior to your first court date and send a copy to the plaintiff(s) or plaintiff(s) attorney, if any.

A copy of the statement of claim shall be served with this summons.

DATED at PASCO CO, Florida on this MAY 20 day of 2014, 20_____.

Paula S. O'Neil
Clerk & Comptroller
Pasco County, Florida

By: Mary E. Ybarra
Deputy Clerk

NOTICE - PROPER DRESS IS REQUIRED FOR COURT, or you may be held in contempt or refused admittance. NO shorts, tank tops, undershirts, etc.

FOR PROCEEDINGS BEFORE THE COURTS OF PASCO COUNTY

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Within two (2) working days of your receipt of this summons please contact the Public Information Dept., Pasco County Government Center, 7530 Little Rd., New Port Richey, FL. 34654; (727) 847-8110 (V) in New Port Richey; (352) 521-4274, EXT. 8110 (V) in Dade City; VIA 1-800-955-8771 if you are hearing impaired.

Issued: ☐ Certified Mail
☐ Sheriff of Pasco County
☐ Sheriff of _____ County
☐ Ret'd Process Server
☒ Ret'd Plaintiff (s)
☐ Ret'd Atty

Copy to: Jr Trade Inc dba Roman Sobolev
27251 State Road 54 Suite B14-411
Wesley Chapel, FL 33544

EXHIBIT 10

Kind Regards,



Alla Solovyeva

CEO

Marine Transport Logistics

Phone: [\(201\) 858-8600](tel:(201)858-8600) Ext 0116

Fax: [+1 \(201\) 443-20-88](tel:+1(201)443-20-88)

Address: [63 New Hook Rd, Bayonne\(NJ\), 07002](#)

Website: www.mtlworld.com



To drop off the vehicles and cargo please write to inventory@mtlworld.com

We remind you that it is your obligation and responsibility to check the pictures uploaded with your shipment for any type of damages and inconsistencies. If you find any discrepancies, you must notify Marine Transport Logistics within not later than 48 hours after this notice was issued. Any claims after this period will be reviewed but not guaranteed to be processed.

CONFIDENTIALITY NOTICE: This message and any accompanying documents contain information belonging to the sender which may be confidential and legally privileged. This information is only for the use of the individual or entity to which it was intended.

From: Dimitry <dimitry@mtlworld.com>

Sent: Monday, February 24, 2014 1:39 PM

To: oksana@mtlworld.com

Subject:

Original agreement for the above referenced vehicle was to charge storage at \$150/month payable at the end of every month. MTL held up our end of the agreement for ____ months. Mavl never paid a single invoice for storage. After __ months have past due to non payment from Mavl, MTL retracted its initial offer for storage charges and charged Mavl at Tariff.

Regards,
Dimitry Alper
Director of Operations
Legal Department
Marine Transport Logistics
63 New Hook Road
Bayonne, New Jersey 07002
Business Phone (201) 858-8600 Ext 120
Fax 201-603-2824
Skype: Dimitry Alper

Unless otherwise noted, all ocean freight quotations are: valid for 30 days from the date of original quotation, subject to equipment availability, subject to any and all tariff additional valid at time of shipment. Inland freight quotations are: subject to third party increases valid at time of shipment, subject to any fuel surcharges valid at time of shipment, subject to weight limitations and weight distribution requirements in accordance with the local and national rules and regulations of the country(ies) of transit, subject to availability of inland carrier at time of booking. Loading, lashing, securing, blocking and bracing of cargo is for shipper's account. Carrier reserves the right to stow cargo in the best interest of the Vessel and in compliance with local, national and international rules, regulations and conventions. On deck shipments at shipper's risk. Dangerous cargo, as defined by 49 CFR or the IMDG Code, is subject to the line's approval at time of booking. Kindly note all vessel dates are subject to changes. Equipment is subject to availability. By using MTL's services, client thereby agrees to terms and conditions which could be found at our website www.MTLWORLD.com.

ALL COMMUNICATION IN THIS EMAIL IS PRIVILEGED AND INTENDED ONLY FOR THE ORIGINAL RECIPIENT. ALL OTHER USE OF SUCH COMMUNICATION IS PROHIBITED BY LAW.